

25NWCV03591 25NWCV03591

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WCCP CERRITOS, LLC, ET AL. v. ICORE LENDING, INC.

CASE NO.: 25NWCV03591

HEARING: 09/15/2026 @ 9:30 AM

#13

TENTATIVE ORDER

Judgment

Creditors' motion for an assignment order and restraining order is GRANTED.

Moving party to give notice.

Plaintiffs and Judgment Creditors WCCP Cerritos, LLC;
Pacific Service Company, Inc.; PVP Investments, LLC; WCCP Baseline Crossings,
LLC; and WCCP Arrowhead Park Place, LLC (Plaintiffs or Judgment Creditors) move
for an assignment order and restraining order.

Background

On October 6, 2025, Plaintiffs filed this unlawful detainer
action against Defendant ICore Lending, Inc. (Defendant or Judgment Debtor) and
Does 1 to 5 regarding the property located at 12800 Center Court Drive South,
Suite 500, Cerritos, California, 90703, Los Angeles County.

On January 29, 2026, Judgment was entered in favor of

Plaintiffs and against Defendant following a court trial.

On July 9, 2026, the Court granted Plaintiffs' unopposed motion for attorney's fees.

Legal Standard

Pursuant to Code of Civil Procedure section 708.510, subdivision (a), the Court, upon noticed motion by the judgment creditor, can order the judgment debtor to assign to the judgment creditor all or part of a right to payment due or to become due, whether or not the right is condition on future developments, including wages from the federal government that are not subject to withholding under an earnings withholding order, rents, commissions, royalties, payments due from a patent or copyright, or an insurance policy loan value.

The Court may consider the following factors in determining whether to make an assignment or the amount of an assignment: (1) "[t]he reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor"; (2) "[p]ayments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support"; (3) "[t]he amount remaining due on the money judgment"; and (4) "[t]he amount being or to be received in satisfaction of the right to payment that may be assigned." (Code Civ. Proc., § 708.510, subd. (c).) "[a] right to payment may be assigned pursuant to this article only to the extent necessary to satisfy the money judgment." (Code Civ. Proc., § 708.510, subd. (d).)

"When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned." (Code Civ. Proc., § 708.520, subd. (a).) The Court may issue the order on a showing of need, may also require the creditor to provide an undertaking, and may modify or vacate the order at any time with or without a hearing. (Code Civ. Proc., § 708.520, subd. (b), (c).) "The order shall be personally served upon the judgment debtor and shall contain a notice to the judgment debtor that failure to comply with the order may subject the judgment debtor to being held in contempt of court." (Code Civ. Proc., § 708.520, subd. (d).)

Discussion

Judgment Creditors move for (1) an order assigning to them all the right of Judgment Debtor to payment from any of its accounts receivable from any source to the extent necessary to satisfy the judgment entered in favor of Judgment Creditors and against Judgment Debtor on January 29, 2026, in the amount of \$211,381.78, plus accrued post-judgment interest, and attorneys' fees (Judgment) and (2) a restraining order restraining and enjoining Judgment Debtor from assigning, transferring, encumbering, hypothecating, or otherwise disposing of any rights to payment from any of its accounts receivable or any other assignable rights to payment, pending full satisfaction of the Judgment. This motion is unopposed.

Assignment

Order

Judgment Creditors argue that Judgment Debtor has refused to satisfy the Judgment. Judgment Creditors state that no portion of the Judgment has been satisfied as of the date Judgment Creditors filed this motion. (Petersen Decl., ¶ 3.) Judgment Creditors note that Judgment Debtor is an active, operating business and that during Judgment Debtor's tenancy, Judgment Debtor provided a financial statement reflecting that Judgment Debtor held accounts receivable in excess of \$500,000. (Petersen Decl., ¶¶ 5-6.)

Here, Judgment Creditors show that the factors under Code of Civil Procedure section 708.510, subdivision (c) support granting an assignment order. Specifically, Judgment Debtor is not a natural person. Also, the Judgment remains unsatisfied despite Judgment Debtor's active business operations and, as of June 30, 2025, Judgment Debtor reported accounts receivables in excess of the amount of the Judgment. Moreover, Judgment Creditors establish that accounts receivable are assignable under Code of Civil Procedure section 708.510, subdivision (a). (See Code Civ. Proc., § 708.510, subd. (a); Leg. Comm. Cmts. ("[Section 708.510] also provides an optional procedure for reaching assignable forms of property that are subject to levy, such as accounts receivable, general intangibles, judgments, and instruments."].)

Based on the foregoing, the Court finds the requested assignment order warranted.

Restraining

Order

Judgment Creditors also request a restraining order prohibiting Judgment Debtor from assigning or otherwise disposing of the rights to the payments sought to be assigned here.

Judgment Creditors make this request on the basis of Judgment Debtor's conduct in this litigation. Judgment Creditors argue that Judgment Debtor has demonstrated a pattern of avoidance and disregard for its obligations by failing to appear for the court trial and then not making any effort to satisfy the Judgment. (Petersen Decl., ¶ 7.) The Court agrees that Judgment Creditors establish a need based on Judgment Debtor's lack of participation in the litigation and in satisfying the Judgment thus far.

Conclusion and Order

Judgment Creditors' motion for an assignment order and restraining order is GRANTED.

This Order assigns to Judgment Creditors all of Judgment Debtor's rights to payment from any of its accounts receivable, and all other assignable rights to payment, only to the extent necessary to satisfy the Judgment, plus accrued post-judgment interest, and attorneys' fees and costs.

The Court also issues a restraining order restraining Judgment Debtor from assigning, disposing of, or encumbering any such rights to payment pending satisfaction of the Judgment.